

Udit Narayan v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 16 May 2023 · 2023:AHC:105530-DB · WRIT - C No. - 13982 of 2023 · **Recovery citation quashed with costs; fresh Supply Code proceedings left open.**

HEADNOTE

Recovery citation dated 29.11.2021 for electricity-theft dues quashed after the licensee conceded it was wrongly issued and was being withdrawn. Respondent no. 4 may proceed afresh strictly under the U.P. Electricity Supply Code, 2005. Costs of Rs. 10,000 imposed.

FACTUAL SUMMARY

Udit Narayan challenged a recovery citation dated 29 November 2021, issued by respondent no. 4, for electricity dues in a theft case. The Allahabad High Court stayed coercive action on 26 April 2023. On 9 May 2023 counsel for the department admitted that notice of the provisional assessment had not been sent by registered post. On 15 May 2023 respondent no. 4 wrote that the citation had been wrongly issued and was being withdrawn.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

quash of a wrongly issued theft-dues recovery citation

HOLDING

The recovery citation dated 29.11.2021 for electricity-theft dues, which the licensee conceded had been wrongly issued and was being withdrawn, is quashed. Respondent no. 4 may proceed afresh only in strict accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. Respondent nos. 3 and 4 shall pay the petitioner costs of Rs. 10,000 within two weeks, and respondent no. 3 may recover that sum from the erring officer. ¶ 2-4

FLAG The order invokes the U.P. Electricity Supply Code, 2005 without a clause number. Dates 4.5.2023, 5.5.2023 and 16.5.2023 are not code clauses.

PRINCIPLE TAGS

wrongly-issued-theft-recovery-citation-quashed-fresh-supply-code-proceedings On the licensee's concession that the 29.11.2021 recovery citation for theft dues was wrongly issued and was being withdrawn, the Court quashed it, left respondent no. 4 free to proceed afresh strictly under the U.P. Electricity Supply Code, 2005, and imposed costs of Rs. 10,000 for the harassment. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE PETITIONER'S LIABILITY FOR THE ALLEGED THEFT, AND THE VALIDITY OF ANY FRESH ASSESSMENT OR RECOVERY.

Respondent no. 4 was left free to proceed afresh strictly under the U.P. Electricity Supply Code, 2005. ¶ 3

NOT DECIDED — WHETHER FAILURE TO SEND THE PROVISIONAL-ASSESSMENT NOTICE BY REGISTERED POST, WITHOUT MORE, INVALIDATES AN ASSESSMENT.

The department admitted the omission on 9 May 2023 and then withdrew the citation. The final order does not construe that service requirement.

